

VICTORIA CRUISE CONTRACT 2018 – 2019

Validity: Starting: October 01, 2018

Ending: September 30, 2019

AGREEMENT BETWEEN

CÔNG TY TNHH THIEN MINH HOSPITALITY MANAGEMENT (TMGH)

Representative: Ms. Pascale Simonot Herry – Executive Director
Address: Level 10, 157 Pasteur Street
District 3, Ho Chi Minh City
Tel: (84 8) 6290 9720
Fax: (84 8) 6290 9710
Email: reservation@victoriahotels.asia

Hereafter called Party A

AND

365 TRAVEL CO., LTD – VIETNAM

Representative: Mrs Nguyen Thi Thanh Nga – Director
Address: No 707, 7F, 57 Lang Ha St, Ba Dinh, Hanoi
Tel: 02438354899
Fax: 02437739100
Email: info@365travelvietnam.com

Hereafter called Party B

Sapa ▪ Hoi An ▪ Phan Thiet ▪ Can Tho ▪ Chau Doc ▪ Nui Sam ▪ Luang Prabang
Level 10, 157 Pasteur Street, District 3, Ho Chi Minh City, Vietnam

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CONTRACTUAL RATES
Valid from 01 October 2018 to 30 September 2019

1. PRIVATE CRUISES:

1.1. CAI BE PRINCESS CRUISES:

✓ **A TASTE OF THE MEKONG (code CBP-01) – “CAI BE – DONG HOA HIEP – PHU AN”**

Period	Between 2-3 guests	From the 4 th guest	FOC policy
	price / person	price / person (on top of charge of first 3 guests)	
Oct 2018 – May 2019 (High Season)	1,350,000	440,000	Every 10 th guest is entitled to 0.5 FOC
Jun 2019 – Sep 2019 (Low Season)	1,200,000	440,000	Every 10 th guest is entitled to 01 FOC

✓ **MEKONG IMPRESSIONS UPSTREAM (code CBP-02) – “CAI BE – PHU AN – VINH LONG”**

✓ **MEKONG IMPRESSIONS DOWNSTREAM (code CBP-02bis) – “VINH LONG – CAI BE – PHU AN”**

✓ **MEKONG ESCAPADE (code CBP-03) – “CAI BE – HOA KHANH – PHU AN”**

✓ **EXPERIENCE THE SIMPLE LIFE ON TAN PHONG ISLET (code CBP-04) – “CAI BE – TAN PHONG – PHU AN”**

Period	Between 2-3 guests	From the 4 th guest	FOC policy
	price / person	price / person (on top of charge of first 3 guests)	
Oct 2018 – May 2019 (High Season)	1,450,000	440,000	Every 10 th guest is entitled to 0.5 FOC
Jun 2019 – Sep 2019 (Low Season)	1,300,000	440,000	Every 10 th guest is entitled to 01 FOC

✓ **THROUGH THE LUSH COUNTRYSIDE IN BEN TRE (code CBP-05) – “PHONG NAM – NHON THANH – BEN TRE”**

✓ **CRUISE AND CYCLE THROUGH THE SCENIC BEN TRE (code CBP-06) – “PHONG NAM – BA LAI RIVER – BEN TRE”**

Period	Between 2-3 guests	From the 4 th guest	FOC policy
	price / person	price / person (on top of charge of first 3 guests)	
Oct 2018 – May 2019 (High Season)	1,250,000	440,000	Every 10 th guest is entitled to 0.5 FOC
Jun 2019 – Sep 2019 (Low Season)	1,100,000	440,000	Every 10 th guest is entitled to 01 FOC

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Notes:

- ✓ Prices are in Vietnam Dong, per person, inclusive of service charges and taxes
- ✓ Prices are included lunch at Le Longanier Restaurant (Menu Jade). For cruises in Ben Tre, lunch is included at a local restaurant.
- ✓ Peak Season:
Lunar New Year: From Feb 4 to Feb 8, 2019
Surcharge Peak Season: VND 500,000 net /boat / day
- ✓ The prices of first 3 guests are applied for every boat.
- ✓ The boat capacity is 25 guests
- ✓ Prices are only applicable for related itineraries and services only. Please contact us for any special requests

1.2. SONG XANH CRUISES:

- ✓ **LIFE ON THE RIVER (2 Days 1 Night Cruise)** – “CAI BE – VINH LONG – SA DEC – CAN THO” (or reverse)
- ✓ **CRUISE TO TRAN DE (GATEWAY TO CON DAO) (2 Days 1 Night Cruise)** – “CAN THO – LONG PHU – TRAN DE”

No. of Guests	Period	2	3 - 4	5 - 6
VND / Person	Oct 2018 – May 2019 (High Season)	5,700,000	5,130,000	4,560,000
VND / Person	Jun 2019 – Sep 2019 (Low Season)	5,130,000	4,620,000	4,100,000

- ✓ **MEKONG CROSSROADS (3 Days 2 Nights Cruise)** – “CAI BE – VINH LONG – SA DEC – CAN THO” (or reverse)

No. Of Guests	Period	2	3 - 4	5 - 6
VND / Person	Oct 2018 – May 2019 (High Season)	6,800,000	6,120,000	5,440,000
VND / Person	Jun 2019 – Sep 2019 (Low Season)	6,120,000	5,500,000	4,900,000

- ✓ **DEEP IN THE DELTA (3 Days 2 Nights Cruise)** – “CAI BE – VINH LONG – SA DEC – LONG XUYEN – CHAU DOC” (or reverse)

No. Of Guests	Period	2	3 - 4	5 - 6
VND / Person	Oct 2018 – May 2019 (High Season)	7,900,000	7,110,000	6,320,000
VND / Person	Jun 2019 – Sep 2019 (Low Season)	7,500,000	6,750,000	6,000,000

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- ✓ **CROSSING THE DELTA TO THE SEA (3 Days 2 Nights Cruise) – “CAI BE – SA DEC – LONG XUYEN – RACH GIA”**
(or reverse)

No. Of Guests	Period	2	3 - 4	5 - 6
VND / Person	Oct 2018 – May 2019 (High Season)	7,900,000	7,110,000	6,320,000
VND / Person	Jun 2019 – Sep 2019 (Low Season)	7,500,000	6,750,000	6,000,000

Notes:

- ✓ Prices are per person, inclusive of service charges and taxes
- ✓ Prices are applicable for related itineraries and services only. Please contact us for any special requests
- ✓ Non-Vietnamese or English-speaking tour guides are welcome to escort guests during the cruise. Home-stay and meals with our crew will be provided for a minimum charge of:
 - 2D/1N trip: 250,000 VND / person
 - 3D/2N trip: 350,000 VND / person
- ✓ Peak Season:
Lunar New Year: From Feb 04 to Feb 08, 2019
Surcharge Peak Season: VND 725,000 net /boat/ night

2. LUNCH AT LE LONGANIER RESTAURANT

- ✓ Menu Jade: VND 330,000 net / person / meal
- ✓ Menu Emeraude: VND 402,000 net / person / meal
- ✓ Menu Topaze: VND 445,000 net / person / meal
- ✓ Menu Rubis: VND 487,000 net / person / meal

Notes:

- ✓ The restaurant is newly accepting outside guests / non-cruising guests (4-hour advance reservation)
- ✓ Peak Season:
Lunar New Year: From Feb 04 to Feb 08, 2019
Surcharge Peak Season: VND 106,000 net /guest
- ✓ Meal rates are exclusive of beverages and applicable for a minimum of 2 guests
- ✓ In all bookings made by Party B, the type of menu must be clearly selected including special menu request(s) and/or any special set-up to be arranged.

B. GENERAL TERMS AND CONDITIONS:

1. LIABILITY:

Party A:

Party A is responsible for all services mentioned in the programs sold to Party B and is not responsible for other arrangements such as road transfers from/to HCMC or to/from Cai Be (unless otherwise specified in the program such as in the Join-in/Group Tours).

Party A is not responsible for any claim from the customer of Party B in case of delay or change caused by Party B that may occur in the program.

Party A will not be responsible for any changes or cancellations that may occur in case of unexpected political moves, strikes, or decisions from official organizations such as WHO (World Health Organization) to disallow tourist access to certain provinces due to sanitary or disease reasons.

Party B:

Party B is responsible for arranging all other services excluded in Party A's liability such as transfers from/to HCMC or to/from Cai Be for private cruises, etc. in respects to the relevant program and timing, in order to avoid delays which could lead to changes in the program and eventual complaints from client(s).

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2. CHILDREN'S POLICY:

All Cruises, Le Longanier Restaurant:

- | | |
|--|-----------------------------------|
| • Children aged 4 or less: | Free of Charge |
| • Children from the age of 5 to 11: | 50% discount based on adult price |
| • Children from the age of 12 and above: | Full price |

3. PEAK SEASON SURCHARGES

A peak season surcharge is applicable on all private cruises and packages including private cruises and meals in Le Longanier Restaurant as follows:

Period: 04 – 08 Feb 2019 inclusive (05 days)

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|---|------------------------------|
| • Victoria Cruises (any private cruises, any package including private cruises) | |
| Cai Be Princess Cruises: | VND 500,000 net /boat / day |
| Song Xanh Cruises: | VND 725,000 net /boat/ night |
| • Le Longanier Restaurant: | VND 106,000 net /menu /guest |

4. PAYMENT POLICY:

- These contracted rates are to be kept strictly confidential and are NOT allowed to be published on the internet or to any website. Otherwise, these tariffs will be invalidated without prior notice.
- In case you do not have existing credit facilities with Victoria Cruise, reservations can only be accepted with pre-payment of 50% of the estimated cost by the cut-off date provided in the confirmation. The balance must be settled before guest check-in by cash, credit card or bank transfer, unless both parties have a prior agreement for alternative arrangements. Should a credit application be completed and accepted, payment must be settled in full within 30 days of receipt of the invoice. For payment exceeding 30 days, Victoria Cruises reserve the right to add a penalty fee of 5% of the invoiced amount for each 30 days of late payment.
- Any fees related to extra services not mentioned or included in detailed services (cruise programs) of Party A must be paid on the spot by the clients themselves or by Party B according to their own arrangements.
- All payments must be settled in **VND** by a bank transfer to the bank references stipulated on the invoice, not inclusive of any bank charges.

5. CANCELLATION POLICY:

- More than 15 days before departure: no charge
- Between 4 and 14 days before departure: 50% of total estimated expenses is chargeable
- Within 3 days before departure or no-show: 100% of total estimated expenses is chargeable

Exceptions:

- For Song Xanh only, between 15 and 29 days before departure: 25 % of total estimated expenses is chargeable (more than 29 days, no charge)
- For Le Longanier only, within 24 hours before departure: 100% of total estimated expenses is chargeable (more than 24 hours, no charge)
- For ad-hoc/big groups (50 pax and above), payment & cancellation will be specified in the confirmation.

<u>Agreed and accepted by:</u> Signature for: Name & Position: Date:	<u>Agreed and accepted by:</u> Signature for: TMG Hospitality Name & Position: Ms. Pascale Simonot Herry Executive Director Date: Monday, February 26, 2018
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CONTACT DETAILS:

Company: VICTORIA CRUISE ONE MEMBER Co. LTD
(Công ty TNHH MTV Du thuyền Victoria)
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Hotline: (84) 974 872 464
Toll free in Vietnam: 1800 599 955
Fax: (84 273) 3924856
Contact person: Email: resa.caibe@victoriahotels.asia
Ms Nguyen Thuy Thao Ly – Reservation Department
Tax Code: 1201439769
Bank account Number: 0111000197921 VIETCOMBANK VIETNAM – Can Tho Branch

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